

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

KEYLA POLANCO

Plaintiff,

Index No: 150870/2014

AMENDED SUMMONS

-against-

**THE CITY OF NEW YORK, THE NEWYORK POLICE DEPARTMENT,
POLICE OFFICER SHANE MCQUILLAN (SHIELD NO. 14365),
POLICE OFFICER ROBERT RENNIE, POLICE OFFICER DENNIS WALSH,
and POLICE OFFICERS JOHN AND JANE DOE of the 13th PRECINCT.**

Defendants.

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the Plaintiff with a copy of your answer, or, if the complaint is served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorney within twenty (20) days after the service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or to answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Queens County as the place of venue on the basis of where the incident occurred.

Dated: March 10, 2014
New York, New York


NYTANO ROMULUS, ESQ.
Attorney for Plaintiff
100 Church Street, 8th Floor
New York, NY 10007
(646) 524-3975 P
(646) 478-9482 F

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

KEYLA POLANCO

Plaintiff,

-against-

Index No: 150870/2014

AMENDED COMPLAINT

**THE CITY OF NEW YORK, THE NEWYORK POLICE DEPARTMENT,
POLICE OFFICER SHANE MCQUILLAN (SHIELD NO. 14365),
POLICE OFFICER ROBERT RENNIE, POLICE OFFICER DENNIS WALSH,
and POLICE OFFICERS JOHN AND JANE DOE of the 13th PRECINCT.**

Defendants.

NOW COMES the Plaintiff, **KEYLA POLANCO**, by and through her attorney,
Nytaino Romulus, Esq. as his Complaint against the Defendants, and respectfully shows to this
Court and allege as follows:

PARTIES:

1. That the Plaintiff, **KEYLA POLANCO** (Hereinafter "Plaintiff"), is presently a resident of the city of Valley Stream, in the State of New York.
2. At the time of the incident, the Plaintiff was a resident of the City and State of New York and County of Nassau.
3. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York, and all the police officers thereof, including **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH** and **POLICE OFFICERS JOHN DOE**.
5. Upon information and belief, at all times hereinafter mentioned Defendants **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH** and **POLICE OFFICERS JOHN DOE**, were employed by Defendant, **THE CITY OF NEW YORK**, as police officers.
6. Upon information and belief, at all times hereinafter mentioned, the Defendant, **RAYMOND KELLY**, Commissioner of the Police Department of the City of New York, was and is presently acting as Police Commissioner of the City of New York and is an employee of the City of New York and is designated as head of police officers for the City of New York.
7. This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil Rights Acts, Title 42 of the United States Code, Section 1983, et seq., and State law for false arrest, false imprisonment, malicious prosecution, assault and battery, excessive use of force, abuse of process, intentional infliction of emotional distress, civil rights violations of 42 U.S.C. §§ 1981, 1983, 1985(3), and negligent hiring and supervision of police officers.
8. This action also arises from the rights under the Constitution and laws of the State of New York.

9. Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the authority of their office as police officers of said state, City and County.

PENDANT STATE CLAIMS:

10. That Notice of Plaintiff's Claim for Damages for false arrest, false imprisonment, violation of civil rights, intentional infliction of emotional distress, malicious prosecution, abuse of process, negligence in hiring, negligence in supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the 13th day of February 2013.
11. That more than 30 days have elapsed since the Notice of Claim has been served upon the Defendants City of New York and other defendants and said Defendants have neglected to or refused to make any adjustment or payment thereof; hence, this action is commenced within one year and 90 days after cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KEYLA POLANCO
FALSE ARREST AND FALSE IMPRISONMENT**

12. That on January 13, 2013, **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH** arrested **KEYLA POLANCO** (Hereinafter "Plaintiff") and charged her with resisting arrest, misdemeanor assault, and two counts of

assaulting a police officer and taken to the 13th precinct, even though she had committed no crime.

13. After being detained in police custody for several hours, the Plaintiff was ultimately released on her own recognizance.

**AS AND FOR THE SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
ASSAULT AND BATTERY**

14. Plaintiff, **KEYLA POLANCO**, hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 13 with the same force and effect as if set forth herein.

15. That on January 13, 2013, the **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH, and JOHN DOE POLICE OFFICERS** responded to the scene of an automobile accident, wherein a vehicle had struck the Plaintiff's friend. While at the scene, the above named officers pushed the Plaintiff into a wall, then onto the ground and kicked and struck her without reasonable cause or provocation causing her to suffer bleeding, bruising, swelling, and a great degree of pain.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF:
FOR INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL
DISTRESS**

16. Plaintiff, **KEYLA POLANCO**, hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 15 with the same force and effect as if set forth herein.
17. That as a result of the Defendants' abusive behavior in the hours the Plaintiff spent in their custody, she experienced a great degree of stress, humiliation, anxiety, despair, pain and intimidation.
18. That due to the Defendants' conduct, the Plaintiff still suffers from anxiety, despair, and lack of sleep; Plaintiff continues to be apprehensive of law enforcement and no longer feels comfortable in the presence of members of the NYPD.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF:
NEGLIGENCE IN HIRING AND RETAINING**

19. Plaintiff, **KEYLA POLANCO**, hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 18 with the same force and effect as if set forth herein.
20. That the police officers acted with the full knowledge and consent of the City of New York, which ratified their illegal behavior. They acted without probable or reasonable cause when they falsely arrested and maliciously prosecuted Plaintiff, who had not engaged in any criminal activity whatsoever.
21. That the Defendants, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees.

22. That Defendants, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the State and City of New York, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, the Plaintiff.
23. That the Defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining as and for its employees, the above named individuals **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH**, in that the said Defendants lacked the experience, deportment and ability to be employed by the Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; in that Defendant, **THE CITY OF NEW YORK**, and their agents, servants and employees were otherwise careless, negligent and reckless.
24. That the aforesaid occurrence, to wit: the false arrest and imprisonment were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of the Plaintiff.
25. That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.

26. That by reason of the aforesaid, the Plaintiff still suffers and will continue to suffer great mental pain, anxiety and distress due to the actions of the Defendants, their agents, servants and employees.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF:
NEGLIGENCE IN TRAINING AND SUPERVISING**

27. The Plaintiff, **KEYLA POLANCO**, hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as set forth herein.

28. That the Defendant, **THE CITY OF NEW YORK**, their agents, servants and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular the named Defendants **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH**, in that they failed to train their employees to exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their employer; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

29. That the aforesaid occurrence, to wit: the false arrest and imprisonment were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of the Plaintiff.

30. That by reason of the aforesaid, the Plaintiff still suffers and will continue to suffer great mental pain, anxiety and distress due to the actions of the Defendants, their agents, servants and employees.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF:
NEGLIGENCE IN PERFORMANCE OF DUTIES**

31. The Plaintiff, **KEYLA POLANCO**, hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as set forth herein.

32. That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in that the Defendants, their agents, employees; and in that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.

33. That the aforesaid occurrence, to wit: the false arrest and imprisonment were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of the Plaintiff.

34. That by reason of the aforesaid, the Plaintiff still suffers and will continue to suffer great mental pain, anxiety and distress due to the actions of the Defendants, their agents, servants and employees.

**AS FOR AN SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF'S
CIVIL RIGHTS ACTION 42 USC §1983**

35. The Plaintiff hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as set forth herein.

Venue and Jurisdiction

36. That Jurisdiction is founded upon the existence of a Federal Question.

37. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. §1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

38. That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiffs by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States (42 USC § 1983, 1981, 1985 (3)) and arising under the federal constitutional laws and statues as well as the laws, statues, and constitution of the State of New York.

39. The amount in controversy exceeds, exclusive of interest and costs, the jurisdictional limits of this and any other court having jurisdiction.
40. The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § 1981, 1983 and the Constitution of the State of New York.
41. Without any reason or probable cause whatsoever, police officers effectuated the arrest and detention of the Plaintiff.
42. Despite the fact the Plaintiff was innocent of all charges, Defendants **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH**, arrested the Plaintiff for refusal to move and detained her for several hours.
43. These police officers, with the full knowledge and consent of the City of New York, which ratified their illegal behavior, acted without probable or reasonable cause when they falsely arrested the Plaintiff.
44. In engaging in the conduct described above, and falsely arresting and imprisoning Plaintiff, Defendants **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH** deprived Plaintiff of her civil rights pursuant to 42 U.S.C.A. § 1983. Further, as police officers employed by Defendant City of New York, said Defendant Police officers were acting under the color of State law.
45. That the aforementioned misuse of authority and power by Defendants **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH** were egregious and shocking to the conscience. As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from his unlawful
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confinement against his will; and was caused and will continue to undergo and endure anxiety, stress, mental anguish, and humiliation as a consequence thereof.

46. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth and Fourteenth Amendments of the United States Constitution and by Title 42 U.S.C.A. §1983 and the those laws, ordinances and statues of the State of New York to wit:

a) The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned, and detained the Plaintiff without any right, privilege or grounds,

b) The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff.

c) That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees,

d) That Defendant, their agents, servants and employees in their failure to enforce the laws of the State of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendant,

e) That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the State and City of New York, did act willfully, wantonly, maliciously, and with such reckless disregard for the consequences as to

c) the right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

55. That by reason of the aforesaid violations, false arrest, and false imprisonment, otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitutional rights as set forth in the Constitution of the United States of America, and provided him in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

56. That by reason of the aforesaid violations, to wit the false arrest and false imprisonment caused by the Defendants, who wrongfully deprived the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitution of the United

display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York, including Plaintiff,

f) That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear danger to the citizens of the City and State of New York.

47. As a result of the aforesaid Defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum that exceeds the Jurisdictional limits of all lower courts.

48. The Defendants, their agents, servants, and employees wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege, or grounds.

49. The arrest and imprisonment was not justified by probable cause or other legal privilege or grounds. Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.

50. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.

51. That the plaintiff demands attorney fees should he prevail in his 42 U.S.C. Section 1983 claims against the individually named police officers and City of New York.

**AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
CIVIL RIGHTS ACTION 42 USC §1985(3)**

52. The Plaintiff, **KEYLA POLANCO**, hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if set forth herein.

53. The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § 1985(3) and the Constitution of the State of New York.

54. That at all times hereinafter mentioned, the Defendant **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH** each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the rights, privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:

a) the right of the Plaintiff to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States

b) the right of the Plaintiff to be informed of the nature and cause of the accusation against him so secured to them under the Sixth and Fourteenth Amendments of the Constitution of the United States; and,

States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

**AS AND FOR A TENTH CAUSE OF ACTION
FOR ATTORNEY FEES PURSUANT TO 42 USC §1988**

57. The Plaintiff, **KEYLA POLANCO**, hereby repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if set forth herein.

58. That the Plaintiff, should he prevail in his 42 USC Section 1983 and 1985(3) claims against the individually named Defendants, seeks attorney's fees pursuant to said statute and the cases therein provided punitive damages against the individually named defendants **POLICE OFFICER MCQUILLAN, POLICE OFFICER RENNIE, POLICE OFFICER WALSH**, in particular to deter them and other like-minded individuals from engaging in future similar conduct of falsely arresting and imprisoning. That by reason of the aforesaid violations, the Plaintiff requests the following relief:

- a) Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts.
- b) Damages in the amount of \$5 million.
- c) Punitive damages in the sum which exceeds the jurisdictional limits of all lower courts.
- d) An award of reasonable attorney's fees, costs and disbursements;
- e) Plaintiff requests a trial by jury of all issues involved in this complaint

f) Such other and further relief as this Court may deem just and proper
under the circumstances.

Dated: March 10, 2014
New York, New York


Nytaio Romulus, ESQ.
Attorney for the PLAINTIFF
100 Church Street, 8th Floor
New York, NY 10007
Tel: (646) 524-3975

ATTORNEY VERIFICATION

[illegible]

NYTAINO ROMULUS, an attorney duly licensed to practice in the State of New York affirms under the penalties of perjury that this document is verified by the undersigned because the Plaintiff lives outside of New York County where Counsel's office is located; to wit: in Nassau County.

Dated: New York, New York
March 10, 2014


Nytaño Romulus

**the within is a (certified) true copy of a
duly entered**

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

KEYLA POLANCO,
Plaintiff

- against -

Index No.

**SUMMONS AND
VERIFIED COMPLAINT**

**THE CITY OF NEW YORK, THE NEWYORK POLICE DEPARTMENT,
POLICE OFFICER SHANE MCQUILLAN (SHIELD NO. 14365),
POLICE OFFICER ROBERT RENNIE, POLICE OFFICER DENNIS WALSH,
and POLICE OFFICERS JOHN AND JANE DOE of the 13th PRECINCT.**
Defendants

Counselor(s): Please Take notice:

NYTAINO ROMULUS, ESQ.
Attorney for Plaintiff
100 Church Street, Suite 833
New York, NY 10007
(646) 524-3975

**Service of a copy of the within SUMMONS AND COMPLAINT is hereby
admitted.**

Attorney(s) for THE PLAINTIFF

NOTICE OF ENTRY

**that the within is a (certified) true copy of a
duly entered order in the office of the clerk of the within named court on**

NOTICE OF SETTLEMENT

**that an order for of which the within is a true copy will be presented for settlement to the
HON. one of the justices of the within named Court at**